

HOUSE No. 4664

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 30, 2025.

The committee on Public Safety and Homeland Security, to whom was referred the petition (accompanied by bill, House, No. 2602) of Mindy Domb that the National Guard provide written notice of activations to certain members of the General Court, reports recommending that the accompanying bill (House, No. 4664) ought to pass [Representatives Xiarhos of Barnstable and Sweezey of Duxbury dissent].

For the committee,

DANIEL CAHILL.

HOUSE No. 4664

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to notice of activation of the Massachusetts National Guard within the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 An act strengthening the governor's authority to limit outside un-federalized military
2 activities within the state.

3 Chapter 33 of the General Laws is hereby amended by adding the following section:-

4 Section 140. (a)(1) The governor, acting as commander-in-chief may provide conditions
5 under which any out of state military units, that have not been federalized under Title 10 of the
6 United States Code, may be permitted to operate within the borders of the commonwealth for the
7 purpose of doing military duty. For the purposes of this section the term “military units” shall
8 mean armed forces, as defined in 10 U.S.C § 101, the United States Army National Guard or the
9 United States Air National Guard.

10 (2) Such military units shall not be permitted to operate in Massachusetts, absent the prior
11 written authorization of the governor and the forthwith acknowledgment of control and
12 conditions of such operation of the governor as commander-in-chief of such military units.

(3) Upon providing military units permission to operate in the commonwealth, the governor shall deliver written notice to members of the house of representatives and the senate of the conditions of any such operation including its scope, purpose and duration.

(b) Any military units or individual troops purporting to conduct operations within the commonwealth without such authority and acknowledgment shall be subject to the civil and criminal laws of the commonwealth.

(c) Nothing in this section shall prohibit or interfere with the interstate deployment of National Guard units into the commonwealth pursuant to any existing interstate compact or agreement.

(d)(1) Upon receiving credible information that the President of the United States or any federal agent has communicated, directly or indirectly, an actual or proposed mobilization affecting military units within, into or from the Commonwealth, the governor shall, within 24 hours, notify all members of the House of Representatives and the Senate. Such notification shall include, to the extent known: (i) the scope of mobilization; (ii) its stated purpose; (iii) anticipated duration; (iv) the source and nature of the information received; and (v) any limitations on the reliability or completeness of such information.

(2) The governor shall provide supplemental notification within 24 hours upon: (i) discovering that any material aspect of the initial notification was inaccurate or incomplete; (ii) receiving new information regarding the mobilization; or (iii) learning of material changes to the scope, purpose, or duration of the mobilization. Any supplemental notification shall explicitly identify information that supersedes or corrects a prior notification and shall include the date and time of all related prior notifications.

35 (3) The duty to provide supplemental notifications under paragraph (2) shall terminate
36 upon the earliest of: (i) the complete withdrawal or demobilization of all affected military units;
37 or (ii) 90 days after initial notification, subject to legislative extension by joint resolution of the
38 general court.